LOAN AGREEMENT

Pinecrest Apartments | Riverside, CA

Borrower	Pinecrest Apartments Owner LLC
Lender	Lakeland Agency Lending
Collateral	Pinecrest Apartments
Loan Amount	$35,080,000
Rate	5.86% Fixed
Closing Date	November 30, 2023

1. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,080,000. The loan shall bear interest at a fixed rate of 5.86% per annum, calculated on an Actual/360 basis. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

2. Maturity and Amortization. The loan matures 3 years from the Closing Date. Monthly payments shall be interest-only for the first 38 months and thereafter based on a 30-year amortization schedule. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

3. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

4. Collateral. The loan is secured by a first-lien mortgage on Pinecrest Apartments, an assignment of leases and rents and a security interest in all personal property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

5. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

7. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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8. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

9. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

10. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

11. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,080,000. The loan shall bear interest at a fixed rate of 5.86% per annum, calculated on an Actual/360 basis. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

12. Maturity and Amortization. The loan matures 12 years from the Closing Date. Monthly payments shall be interest-only for the first 11 months and thereafter based on a 30-year amortization schedule. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

13. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

14. Collateral. The loan is secured by a first-lien mortgage on Pinecrest Apartments, an assignment of leases and rents and a security interest in all personal property. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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15. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

16. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

17. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

18. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

19. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

20. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

21. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,080,000. The loan shall bear interest at a fixed rate of 5.86% per annum, calculated on an Actual/360 basis. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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22. Maturity and Amortization. The loan matures 3 years from the Closing Date. Monthly payments shall be interest-only for the first 42 months and thereafter based on a 30-year amortization schedule. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

23. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

24. Collateral. The loan is secured by a first-lien mortgage on Pinecrest Apartments, an assignment of leases and rents and a security interest in all personal property. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

25. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

26. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

27. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

28. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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29. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

30. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

31. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,080,000. The loan shall bear interest at a fixed rate of 5.86% per annum, calculated on an Actual/360 basis. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

32. Maturity and Amortization. The loan matures 10 years from the Closing Date. Monthly payments shall be interest-only for the first 12 months and thereafter based on a 30-year amortization schedule. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

33. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

34. Collateral. The loan is secured by a first-lien mortgage on Pinecrest Apartments, an assignment of leases and rents and a security interest in all personal property. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

35. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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36. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

37. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

38. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

39. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

40. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

41. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,080,000. The loan shall bear interest at a fixed rate of 5.86% per annum, calculated on an Actual/360 basis. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

42. Maturity and Amortization. The loan matures 7 years from the Closing Date. Monthly payments shall be interest-only for the first 36 months and thereafter based on a 30-year amortization schedule. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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43. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

44. Collateral. The loan is secured by a first-lien mortgage on Pinecrest Apartments, an assignment of leases and rents and a security interest in all personal property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

45. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

46. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

47. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

48. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

49. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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50. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

51. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,080,000. The loan shall bear interest at a fixed rate of 5.86% per annum, calculated on an Actual/360 basis. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

52. Maturity and Amortization. The loan matures 8 years from the Closing Date. Monthly payments shall be interest-only for the first 26 months and thereafter based on a 30-year amortization schedule. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

53. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

54. Collateral. The loan is secured by a first-lien mortgage on Pinecrest Apartments, an assignment of leases and rents and a security interest in all personal property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

55. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

56. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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57. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

58. Cash Management. Upon a Trigger Event, all revenues shall be deposited in a lender-controlled lockbox account. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

59. Events of Default. Events of default include failure to pay when due, breach of covenants, bankruptcy, transfer of the Property without consent and material misrepresentation. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

60. Recourse Carve-Outs. The loan is non-recourse to Borrower except for customary carve-outs including fraud, misappropriation, environmental indemnity and voluntary bankruptcy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA.

61. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $35,080,000. The loan shall bear interest at a fixed rate of 5.86% per annum, calculated on an Actual/360 basis. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

62. Maturity and Amortization. The loan matures 8 years from the Closing Date. Monthly payments shall be interest-only for the first 14 months and thereafter based on a 30-year amortization schedule. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

63. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Pinecrest Apartments Owner LLC

By: Andre Zimmerman Title: President Date: 11/30/2023

_____

Patrick Patel

By: Victor Delgado Title: Authorized Signatory Date: 11/30/2023

Exhibit A - Property

Pinecrest Apartments, 992 Centennial Lane, Riverside, CA 72776. Parcel containing approximately 23.68 acres, together with all improvements thereon.

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